**BRENDAN NGEHSI NEWANFORBI**
Plaintiff, In Propria Persona
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
E-mail: bnn.cdl@gmail.com

**UNITED STATES DISTRICT COURT**

**EASTERN DISTRICT OF CALIFORNIA -- SACRAMENTO DIVISION**

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|---|---|
| **BRENDAN NGEHSI NEWANFORBI,**<br><br>Plaintiff,<br><br>v.<br><br>**FEDERAL EXPRESS CORPORATION; and DOES 1 through 10, inclusive,**<br><br>Defendants. | Case No. 2:26-cv-02881-DAD-SCR<br><br>**PLAINTIFF'S STATUS REPORT**<br>(Fed. R. Civ. P. 16, 26(f);<br>E.D. Cal. L.R. 240;<br>Dkt. 8)<br><br>Status Conference:<br>October 8, 2026, 11:00 a.m.<br>Zoom (dial-in to follow)<br>Judge: Hon. Sean C. Riordan<br>District Judge: Hon. Dale A. Drozd<br><br>Action filed: July 15, 2026<br>Removed: August 24, 2026 |

## PLAINTIFF'S STATUS REPORT

(Fed. R. Civ. P. 16, 26(f); L.R. 240; Dkt. 8)

TO THE HONORABLE COURT, AND TO DEFENDANT FEDERAL EXPRESS CORPORATION AND ITS ATTORNEY OF RECORD:

Plaintiff BRENDAN NGEHSI NEWANFORBI, appearing in propria persona, submits this Status Report under Federal Rules of Civil Procedure 16 and 26(f), Eastern District Local Rule 240, and the Order Setting Status (Pretrial Scheduling) Conference (Dkt. 8, dated September 4, 2026; filed September 8, 2026). Dkt. 8 directs each party to file a separate report

not later than fourteen days before the October 8, 2026 conference. This is Plaintiff's paper. It is not a joint report. It is not a stipulation. Plaintiff does not authorize counsel to affix his signature to any counterpart counsel prepares.

## I.

## INTRODUCTION

Defendant answered on August 31, 2026 (Dkt. 4). There is no pending motion to dismiss. The case is referred to Magistrate Judge Sean C. Riordan for pretrial proceedings under Local Rule 302(c)(21) because Plaintiff is pro se. The Status (Pretrial Scheduling) Conference is set for Thursday, October 8, 2026, at 11:00 a.m., by Zoom. Plaintiff will appear. Plaintiff understands the courtroom deputy will send the dial-in about one week before.

Plaintiff is available to confer under Rule 26(f) and Local Rule 240(b) by telephone or Zoom this week, before the September 24 filing deadline. As of this writing Defendant has not proposed a conference date or a joint report. If the parties reach a joint plan before September 24, Plaintiff will supplement. Until then, this report is Plaintiff's proposed plan. Written email alone is not a substitute for a live conference if Defendant will hold one.

## II.

## SUMMARY OF CLAIMS AND LEGAL THEORIES

This is a failure-to-hire case. Plaintiff applied for work in Defendant's California delivery and package-handling operations. Defendant engaged First Advantage to run a pre-employment background check for "FEDEX GROUND HR." On March 10, 2025, First Advantage sent a pre-adverse notice. After a series of reminders, First Advantage sent a final adverse-action notice on March 19, 2025, confirming Defendant had denied employment.

Plaintiff's records include a July 17, 2024 Paradox confirmation that the online application was completed. Defendant's Answer describes a January 2025 package-handler application and background check. Discovery will resolve the timeline. Plaintiff does not abandon either date.

The operative pleading is the verified Complaint filed July 15, 2026, in San Joaquin Superior Court, No. STK-CV-UWT-2026-0009118, and removed here on August 24, 2026. It alleges six counts: (1) Penal Code section 290.46(j)(2)(E) (unlawful employment use of Megan's Law website information); (2) failure to hire in violation of public policy; (3) Investigative Consumer Reporting Agencies Act, Civil Code section 1786 et seq.; (4) invasion of privacy (Cal. Const., art. I, section 1); (5) negligence per se; and (6) Business and Professions Code section 17200. Plaintiff demanded a jury.

The Answer (Dkt. 4) admits that Defendant engaged First Advantage; that a report was provided to Defendant on or before March 10, 2025; that pre-adverse notice issued on or about that date; that Defendant took adverse action on or about March 19, 2025, and withdrew a conditional offer; that the adverse-action letter referenced NSOPW and the California sex-offender website and identified a Penal Code section 220(a)(1) conviction; and that the First Advantage report identified Plaintiff as a registrant on California's sex-offender registry in connection with that conviction. Defendant denies that any use was unlawful and pleads forty-three affirmative defenses, including an alleged independent basis and unclean hands from employment forms, and a section 290.46(j)(1) "persons at risk" theory. The fight is use and lawfulness, not whether the report named the registry.

## III.

## SERVICE

Service is complete. The Los Angeles County Sheriff served Defendant's registered agent, C T Corporation System, 330 North Brand Boulevard, Suite 700, Glendale, California, on July 24, 2026. Defendant removed on August 24, 2026, and answered on August 31, 2026. There are no unserved named defendants. DOES 1 through 10 remain unnamed. There are no cross-defendants.

## IV.

## JOINDER OF ADDITIONAL PARTIES

Plaintiff does not presently move to add a party. First Advantage is the consumer-reporting agency that generated the notices and the report. Plaintiff reserves the right to amend to name First Advantage, or to identify a Doe, after the report and the decision-file are produced. Plaintiff does not waive joinder by filing this report. Plaintiff does not ask the Court to stay this action while any other case proceeds.

## V.

## AMENDMENT OF THE PLEADINGS

Defendant has answered. Amendment now requires written consent or leave of court under Rule 15(a)(2). Plaintiff contemplates amendment after initial document production if the report, the application file, or the decision-file requires a more definite statement of dates, the decisionmaker, or a named Doe. Plaintiff does not presently intend to drop a claim. Plaintiff proposes December 18, 2026, as the last date to amend or join parties without a showing of good cause. That date is after initial disclosures and the first wave of documents. It does not compress Plaintiff's time, and it is a date certain.

## VI.

## JURISDICTION AND VENUE

Subject-matter jurisdiction is diversity, 28 U.S.C. sections 1332 and 1441. Defendant removed on that basis. Plaintiff does not seek remand. Personal jurisdiction is not disputed. Venue is proper in this District and the Sacramento Division because the application, screening, and denial concerned California employment and the state action was filed in San Joaquin County. Local Rule 120(d). Plaintiff is not aware of a venue motion.

Defendant's certificates of service have used the address bnn.cdla@gmail.com. The correct address is bnn.cdl@gmail.com. Mail service to 1455 Cat Tail Drive, Stockton, California 95204, has reached Plaintiff. Please use the correct email going forward.

## VII.

## RULE 26(f) DISCOVERY PLAN

### A. Initial disclosures

No change to the form of Rule 26(a)(1) disclosures is needed. Plaintiff will serve initial disclosures on October 22, 2026 -- fourteen days after the conference -- and asks that Defendant serve the same day. That is a date certain. Plaintiff does not agree to delay disclosures until a later motion, a later conference, or a date that runs from an event that has not occurred. A further discovery conference should be set only if a dispute remains after the parties confer live.

### B. Subjects, phasing, and cutoff

Discovery should not be phased so that Defendant's documents wait on a motion that

has not been filed. Defendant answered. Discovery should proceed now. The subjects include:

1. The First Advantage report provided to Defendant on or before March 10, 2025, and every communication between Defendant and First Advantage about Plaintiff;

2. The application file for both the July 17, 2024 Paradox confirmation and the January 2025 application described in the Answer, including any conditional offer;

3. The identity of every person who reviewed the report, recommended denial, or withdrew the offer, and their files;

4. Defendant's policies and training on Penal Code section 290.46, Megan's Law, NSOPW, and the use of registry information in hiring;

5. The independent-basis and unclean-hands facts Defendant pleaded, including the January 8, 2025 forms; and

6. ESI in ordinary HR, recruiting, and vendor systems (Paradox, email, the First Advantage portal, and any applicant-tracking system).

Plaintiff will take written discovery and a focused set of depositions (the decisionmaker, a Rule 30(b)(6) witness on screening policy, and, if needed, a First Advantage custodian). Plaintiff will serve a Rule 45 subpoena on First Advantage for the report and the transmittal file. Plaintiff proposes a fact-discovery cutoff of April 16, 2027. No change to the numerical limits in Rules 30, 33, and 36 is requested. Plaintiff does not agree to a discovery stay.

**C. Experts**

Plaintiff may disclose an economist or human-resources expert on lost opportunity and on screening practice. Plaintiff proposes: opening expert disclosures under Rule 26(a)(2) on May 14, 2027; rebuttal disclosures on June 11, 2027; expert discovery closed June 25, 2027. Those are dates certain. They do not reset from the conference or from a later order.

**D. ESI and privilege**

Plaintiff has preserved the Paradox confirmation, the First Advantage notices, and related email, and has not run a destruction program. Plaintiff asks Defendant to confirm a litigation hold covering the categories above, including First Advantage communications and any copy of the report. Plaintiff is willing to use the District's model ESI order. Privilege logs should be served with the production they withhold from, not at the end of discovery.

## VIII.

## ANTICIPATED MOTIONS

No Rule 12 motion is pending. Plaintiff does not anticipate filing one. After document production Plaintiff may move under Rule 15 if amendment is needed, may move to compel if the report or the decision-file is withheld, and may move for summary judgment after the close of fact discovery. Defendant may file a dispositive motion. Plaintiff proposes that all non-discovery motions be heard by Thursday, August 12, 2027, at 10:00 a.m., on Judge Riordan's civil-motion calendar, or the first available Thursday thereafter. Discovery disputes should use Judge Riordan's informal two-page letter and telephone conference before a Local Rule 251 motion.

Plaintiff does not invite a delayed Rule 12(c) motion as a substitute for an answer that is

already on file. If Defendant later moves, Plaintiff will oppose on the schedule the Local Rules set. This report does not extend any defense clock.

## IX.

## UNNECESSARY PROOF AND RULE 702

The parties should be able to stipulate to authenticity of the Paradox confirmation, the First Advantage notices, the Sheriff's proof of service, the Notice of Removal, and the Answer. Plaintiff will consider a stipulation that the First Advantage report produced in discovery is authentic. Plaintiff does not presently anticipate a Rule 702 fight. If one arises, it should be raised with the expert-disclosure dates, not as a surprise at trial.

## X.

## FINAL PRETRIAL CONFERENCE

Plaintiff proposes Thursday, September 16, 2027, at 11:00 a.m., or the first available date the Court sets. That is a date certain. It does not float from the trial date.

## XI.

## TRIAL

Plaintiff demanded a jury. Plaintiff estimates three to four court days. Plaintiff proposes Tuesday, October 12, 2027, or the first available trial date thereafter. The case is an individual failure-to-hire action. It is not a class action and is not suitable for the Judicial Panel on Multidistrict Litigation.

## XII.

## SPECIAL PROCEDURES AND 28 U.S.C. § 636(c)

No special master is needed. Plaintiff has consented to proceed before the assigned magistrate judge for all purposes, including trial, under 28 U.S.C. section 636(c). Plaintiff mailed that consent on September 1, 2026. Consent is effective only if Defendant also consents and both judges accept. Plaintiff does not know Defendant's position. Docket entries 5, 6, and 7 are captioned as consent-or-decline filings; Plaintiff has not assigned those entries to a party. This report does not change Plaintiff's consent.

## XIII.

## MODIFICATION OF STANDARD PROCEDURES

None, other than the separate-report procedure Dkt. 8 already set because Plaintiff is pro se. The case is not complex. Standard limits and a standard scheduling order are enough.

## XIV.

## RELATED CASES

Pending in this District: *Newanforbi v. United Parcel Service, Inc.*, No. 2:26-cv-02847-DAD-CKD (Hon. Dale A. Drozd; Hon. Carolyn K. Delaney). Same plaintiff. Similar Penal Code section 290.46(j)(2)(E) and ICRAA theories. Same background-check vendor (First Advantage). Different employer, different application, different adverse-action dates. UPS has a pending Rule 12(b)(6) motion set for October 7, 2026. Plaintiff discloses the case under Local Rule 123. Plaintiff does not seek consolidation or a stay of this action behind that motion. Defendant here has already answered. Discovery in this case should not wait on another defendant's pleading motion.

No related bankruptcy case is pending in this District. Other employment-screening actions Plaintiff has filed (including a resolved San Joaquin action against Pilot Travel Centers LLC, and pending actions in Alameda Superior Court and the Northern District of California against different employers and different vendors) arise from different transactions. They are not pending in this District and are not offered for assignment or consolidation.

## XV.

## SETTLEMENT CONFERENCE, MAGISTRATE SETTLEMENT JUDGE, AND VDRP

A court-convened settlement conference should be scheduled. Plaintiff stipulates to the assigned magistrate judge, Hon. Sean C. Riordan, as settlement judge. Plaintiff prefers Zoom. Plaintiff will submit a settlement-conference statement to chambers seven days before the conference, as Judge Riordan's standing order requires, and will file a notice of submission on the docket. Plaintiff asks that Defendant appear with a person who has full settlement authority, and that any insurer with coverage for this claim be present or available by telephone for the entire conference.

Plaintiff proposes the week of November 16, 2026, or the first available date thereafter -- after the October 22 disclosures and with time to exchange the report and the decision-file. That is a date-certain window. It does not reset from the October 8 conference. If the Court prefers a later date, Plaintiff asks that the order name the date.

Plaintiff does not stipulate to the District Judge acting as settlement judge if the District Judge will try the case. The assigned magistrate is the right settlement judge. That is the question Dkt. 8 asked. Plaintiff answers it yes.

Voluntary Dispute Resolution under Local Rule 271: Plaintiff will participate if the Court directs it. Plaintiff prefers a magistrate-judge settlement conference to VDRP. The two

are not substitutes for each other unless the Court says so. This paragraph is Plaintiff's L.R. 271(d) position.

## XVI.

## OTHER MATTERS

Plaintiff will appear at the October 8 Zoom conference. Please send the dial-in to bnn.cdl@gmail.com and to (209) 801-4442. Plaintiff's address of record remains 1455 Cat Tail Drive, Stockton, California 95204. This report is executed in Milpitas, California.

Plaintiff asks the Court to adopt the dates below in the scheduling order. Every date is a calendar date. Nothing in this report continues the October 8 conference, vacates Dkt. 8, or waives any claim, defense, or right.

**Plaintiff's proposed dates**

Rule 26(a)(1) initial disclosures: October 22, 2026

Last day to amend or join parties: December 18, 2026

Settlement conference before Judge Riordan: week of November 16, 2026, or first available date thereafter

Fact-discovery cutoff: April 16, 2027

Opening expert disclosures: May 14, 2027

Rebuttal expert disclosures: June 11, 2027

Expert-discovery cutoff: June 25, 2027

Last day to hear non-discovery motions: August 12, 2027, 10:00 a.m.

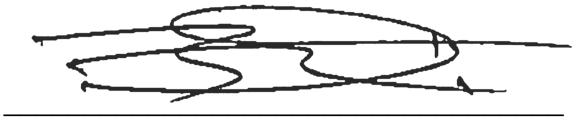
Final pretrial conference: September 16, 2027, 11:00 a.m.

Jury trial (3-4 court days): October 12, 2027, or first available date thereafter

Dated: September 14, 2026

Milpitas, California

Respectfully submitted,



BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Propria Persona

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI
Plaintiff

Case Number: 2:26-cv-02881-DAD-SCR

V.

FEDERAL EXPRESS CORPORATION; and
DOES 1 through 10, inclusive
Defendants

**PROOF OF SERVICE**

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I hereby certify that on September 14, 2026, I served a copy of the attached

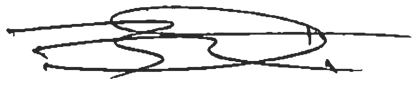
Plaintiff's Status Report (Dkt. 8),

by placing a copy in a postage paid envelope addressed to the person(s) hereinafter listed, by depositing said envelope in the United States Mail at Milpitas, California:

**(List Name and Address of Each Defendant or Attorney Served)**

Allison A. Kray, Esq. (SBN 312544)
Federal Express Corporation
2601 Main Street, Suite 1100
Irvine, CA 92614
allison.kray@fedex.com
Attorney for Defendant Federal Express Corporation

I declare under penalty of perjury that the foregoing is true and correct.



Brendan Ngehsi Newanforbi, In Propria Persona